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Act No. 174 (S.212). An act relating to potable water supply and wastewater system connections

Subjects: Conservation and development; municipal authority; potable water supply and wastewater connections

This act requires the Secretary of Natural Resources to adopt a general permit for potable water supply and wastewater system connections to new or existing structures. Under the general permit, the Secretary may give deference to applications for connections certified by a licensed designer. The Secretary shall publish a guidance manual for licensed designers implementing the general permit. The act also authorizes the Secretary to adopt a potable water supply and wastewater system general permit for various categories of permitted activity, including the subdivision of land when no building, structure, or campground exists on or is proposed for the property at the time of subdivision; for boundary line adjustments for improved or unimproved lots; for the permitting of potable water supply systems with a design flow of less than 1,000 gallons per day when there is no requirement for any variance, hydrogeologic analysis, or yield testing of a potable water source; and for wastewater systems that have a design flow of less than 1,000 gallons per day and do not require a variance, a hydrogeologic analysis, or innovative or alternative technologies. The act establishes lower permitting fees for the general permit for potable water supply or wastewater system connections, and the act repeals a permit fee cap for potable water supply or wastewater system projects in certain designated areas.

The act repeals statutory authority for the Secretary to delegate full potable water supply and wastewater system permitting to a municipality. The act authorizes the Secretary to delegate to a municipality partial authority to conduct technical review of proposed projects that include both municipal potable water supply and municipal wastewater system connections, provided that the water main and sanitary sewer collection line connected to them are owned and controlled by the delegated municipality. A municipality that is delegated connection authority shall incorporate the requirements of the Secretary's general permit for potable water supply and wastewater system connections as part of municipal approval, including deference to applications certified by a licensed designer.

In addition, the act requires the Secretary of Natural Resources' Technical Advisory Committee (TAC) on or before January 15, 2027, to report to the General Assembly regarding authority under State statute and rules that allows the isolation distances for potable water supplies and wastewater systems to extend onto neighboring property, a practice commonly referred to as overshadowing. The TAC shall summarize the scientific and technical basis and benefit to the environment and public health from overshadowing; evaluate alternatives to overshadowing that could prevent or significantly limit overshadowing of property and recommend preferred alternatives;

present data on the frequency of overshadowing and on the different alternatives or types of outcomes that occur when overshadowing exists; and recommend additional steps the Agency of Natural Resources can take to support the resolution of issues that may occur between neighbors when overshadowing occurs.

The act further authorizes the Secretary to enter into a delegation agreement with the owner of a publicly owned treatment works (POTW) for the regulation of pretreatment discharges to the POTW. A pretreatment discharge delegation agreement entered into by the Secretary shall authorize the owner of the POTW to regulate and enforce pretreatment discharges to the POTW consistent with federal law. The act provides that the authority of the Secretary to enter into a pretreatment discharge delegation agreement is contingent upon the U.S. Environmental Protection Agency (EPA) notifying the Secretary that delegation of pretreatment permitting is authorized under a previous agreement between EPA and the State.

Multiple effective dates, beginning on June 18, 2026